

fees, incurred by Defendant as a result of the foregoing conduct by the HOA. In fixing said amount, the Court has considered all evidence in the record before the Court, including the supporting declarations of the moving party.

Disposition

The Court further finds and orders as follows:

1. The Motions to Compel Further Responses is DENIED IN PART and GRANTED IN PART.
2. The Monetary Sanctions shall be paid by the HOA to Defendant within **thirty (30) calendar days** of notice of entry of this order.
3. The Court shall issue the order after hearing.

Courtroom Clerk's session

22. 10:00 AM CASE NUMBER: C23-01464

CASE NAME: BLANCA SANTOS VS. ANDREA ACOSTA

JURY TRIAL 5-7 DAYS

FILED BY:

TENTATIVE RULING:

Parties to Appear.

**Law & Motion
Add On**

23. 9:00 AM CASE NUMBER: C25-01397

CASE NAME: ROBERT RODRIGUEZ VS. SIMONA ZAKHEIM

HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT

FILED BY: ZAKHEIM, SIMONA YANA S.

TENTATIVE RULING:

Before the Court is Defendants Simona Zakheim ("Ms. Zakheim") and Hyden Zakheim, LLP's ("Hyden Zakheim") (collectively "Defendants") demurrer. The demurrer relates to Plaintiff Robert Rodriguez's ("Plaintiff" or "Mr. Rodriguez") First Amended Complaint for (1) Intentional Interference with Prospective Economic Advantage; (2) Negligent Interference with Prospective Economic Advantage;

(3) Conversion/Embezzlement (Pen. Code section 503); (4) Civil Conspiracy; (5) Equitable Enforcement of Lien and Accounting; (6) Constructive Trust; (7) Declaratory Relief; (8) Intentional Misrepresentation, Concealment, Deceit, and Fraud; and (9) Negligent Misrepresentation.

Pursuant to California Code of Civil Procedure section 430.10, Defendants demur to the seven causes of action alleged against them in Plaintiff's First Amended Complaint – (1) Intentional Interference with Prospective Economic Advantage; (2) Negligent Interference with Prospective Economic Advantage; (3) Conversion/Embezzlement (Pen. Code section 503); (4) Civil Conspiracy; (5) Equitable Enforcement of Lien and Accounting; (6) Constructive Trust; and (7) Declaratory Relief – on the grounds that no valid lien ever existed, Mr. Rodriguez fails to allege facts sufficient to establish any of these seven causes of action, and all causes of action are barred by statutes of limitations.

Plaintiff, who is representing himself *in propria persona*, opposes Defendants' demurrer on the grounds that (1) Defendants' request for judicial notice is improper, (2) the First Amended Complaint pleads delayed discovery and fiduciary tolling with particularity, foreclosing any statute of limitations ruling on demurrer, (3) Plaintiff's claims are tort-based and protect different primary rights than the procedurally dismissed 2019 fee contract action, (4) Plaintiff has adequately pled a valid attorney's charging lien created by written agreement and notice, (5) successor counsel who knowingly impair a lien and participate in concealment may be held liable under California law, and (6) all causes of action are adequately pled.

For the following reasons, Defendants' demurrer to Plaintiff's First Amended Complaint is **SUSTAINED in its entirety WITH LEAVE TO AMEND**.

Request for Judicial Notice

Defendants request that the Court take judicial notice of (1) Plaintiff's Complaint filed in the action entitled *Rodriguez v. Masoudi*, Contra Costa County Case Number MSC19-01309; (2) a printout of the court's docket in the marital dissolution matter, *Masoudi v. Masoudi*, Contra Costa County Case Number MSD13-03393; and (3) Defendant Elisabeth Masoudi's Request for Judicial Notice filed in the present action on October 15, 2025.

Plaintiff opposes the Request for Judicial Notice on the grounds of irrelevance, lack of authentication, hearsay, Evidence Code section 352, and alleged violation of California Rules of Court 3.1110(f).

Plaintiff's objection on authentication grounds is without merit. The documents identified in Defendants' request consist of pleadings, docket entries, and court orders issued in this and related Contra Costa County Superior Court actions. Such materials are proper subjects of judicial notice. Judicial notice may be taken of records or rules of any court of this state, regardless of certification (Evid. Code § 452(d), (e).) A court may take judicial notice of its own records when ruling upon a demurrer. (*Nulaid Farmers Assn. v. La Torre* (1967) 252 Cal.App.2d 788, 791.)

It is proper when ruling on a demurrer for a court to take judicial notice of a prior judgment in a different case so long as the parties have had adequate notice and opportunity to present relevant information and the court is merely taking notice of the fact that certain claims were asserted by the

plaintiff and denied by the defendant. (*Oeth v. Mason* (1967) 247 Cal.App.2d 805, 810, Evid. Code, § 453.) “Where facts which are judicially noticed show conclusively that an action is barred, it would be absurd to prolong the litigation so as to await some other method of proof.” (*Ibid.*)

Plaintiff’s hearsay objection likewise fails. The Court takes judicial notice of the existence of identified court records, the fact that they were filed or issued, the dates reflected therein, and the language used in those documents. (*Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882 [“courts are free to take judicial notice of the *existence* of each document in a court file, including the truth of results reached, [however] they may not take judicial notice of the truth of hearsay statements in decisions and court files”]; see also *Day v. Sharp* (1975) 50 Cal.App.3d 904, 914.) Only matters that are reasonably beyond dispute are subject to judicial notice. (*Tenet Healthsystem Desert, Inc. v. Blue Cross of California* (2016) 245 Cal.App.4th 821, 835.) The Court is capable of limiting its consideration to the permissible scope of judicial notice.

Plaintiff’s objection under Evidence Code section 352 is also inapt. Judicial notice of court records relevant to procedural history and accrual issues does not create undue prejudice or confusion; as noted *supra*, the Court is capable of limiting its consideration to the permissible scope of judicial notice.

Plaintiff’s objection on the basis of California Rules of the Court 3.1110(f) is also without merit. The materials at issue are properly submitted in support of a demurrer and fall within the scope of records subject to judicial notice. Plaintiff has not demonstrated any procedural defect warranting denial of the request.

Accordingly, the Court **GRANTS** Defendants’ request for judicial notice as to the existence, filing, and contents of the above documents. The Court takes judicial notice of the fact that the pleadings, docket entries, and court orders in case numbers MSC19-01309 and MSD13-03393 were filed and issued, and of the allegations and procedural history reflected therein. The Court does not take judicial notice of the truth of any factual findings, hearsay statements, or legal conclusions contained in those materials.

Factual Allegations and Procedural Background

This suit arises out of an alleged attorney’s lien agreement.

Mr. Rodriguez, a former attorney, alleges that in April of 2015 he served written notice of an attorney’s lien on former client, Elisabeth Masoudi, whom he had previously represented in a family matter, *Masoudi v. Masoudi*, Contra Costa Superior Court Case No. D13-03393 (“Related Action No. 1”). (First Amended Complaint (“FAC”) ¶ 8.) The lien, which attached to any recovery, settlement, or community property distributions in Related Action No. 1, was also allegedly noticed to Ms. Zakheim and Hyden Zakheim as successor counsel. (FAC ¶¶ 8-9, Ex. A.)

Exhibit A, attached to the First Amended Complaint, is a copy of a “Notice of Attorney’s Lien for Fees and Costs,” listing Robert D. Rodriguez as the claimant in relation to the court action *in re Elisabeth*

Masoudi v. Peymon Masoudi. (FAC at Ex. A.)

From April 2015 through July 2024, Mr. Rodriguez alleges that Defendants, including Ms. Masoudi, acting in concert “actively concealed from Plaintiff the existence, nature, and terms of a settlement or property distribution in the dissolution action.” (FAC ¶ 11.) Mr. Rodriguez further alleges that he “could not in the reasonable use of diligence [have] discovered such nature, and terms of a settlement or property distribution in the dissolution action because such information was concealed and secreted from [him].” (*Ibid.*)

On July 1, 2019, Mr. Rodriguez filed a verified complaint in Contra Costa County (C19-01309) (“Related Action No. 2”) against Ms. Masoudi for (1) Breach of Contract; (2) Money Earned in Quantum Meruit for Reasonable Value of Work, Labor, and Services; (3) Account Stated; and (4) Book Account CCP §337a. (Def. RJN Ex. 1.) The complaint in Related Action No. 2 alleges that on July 19, 2013, Mr. Rodriguez entered into a contract “whereby [Ms. Masoudi] offered to pay Plaintiff for legal services related to a marital dissolution and domestic violence act matter.” (*Id.* Ex. 1 at 2:23-26.)

The complaint in Related Action No. 2 goes on to allege that on July 15, 2015, Mr. Rodriguez demanded payment from Ms. Masoudi in the amount of \$69,593.04 for legal services previously rendered; Ms. Masoudi allegedly refused. (Def. RJN Ex. 1 at 3:6-9, 24-25.) The complaint further alleges that “[a]t all relevant times, Plaintiff’s claim is secured by an attorney’s lien for services that has been completely disregarded by Defendant.” (*Id.* Ex. 1 at 3:16-17.)

On March 21, 2025, the court in Related Action No. 2 granted in its entirety a motion by Ms. Masoudi to (1) quash service of summons, (2) vacate default and default of judgment against Ms. Masoudi, (3) vacate and quash any writ of execution or abstract of judgment issued pursuant to the judgment, and (4) dismiss the action. (Attached as Ex. B to Def. RJN Ex. 3.) The court’s order stated that the ruling was based on findings related to fraudulent service of summons. (*Ibid.*)

Mr. Rodriguez filed the instant suit on May 16, 2025. In this action he alleges that on July 7, 2024, Ms. Masoudi first admitted to him that she had won “substantial community property funds from the dissolution case” and had used those funds to purchase a home. (FAC ¶ 13.) Mr. Rodriguez alleges that this was the first time he learned that Defendants allegedly conspired to conceal and impair his lien. (*Ibid.*)

Mr. Rodriguez filed his First Amended Complaint on November 3, 2025, and this demurrer from Ms. Zakheim and Hyden Zakheim followed on December 3, 2025.

Meet and Confer Efforts

It is the responsibility of the demurring party to meet and confer with the opposing party at least five days prior to the date the responsive pleading is due. (Code Civ. Proc. § 430.41(a)(2).)

Defendants’ Counsel’s efforts to meet and confer before filing this motion consisted solely of written correspondence – namely, three emails labeled meet-and-confer letters sent November 19, 2025, November 20, 2025, and November 24, 2025. (Bulgucheva Dec. Ex. A, B, C.) Defendants’ Counsel

failed to engage in such efforts “in person, by telephone, or by video conference.” (Code Civ. Proc. §430.41(a).) California Code of Civil Procedure section 430.41 requires that a “good faith attempt to meet and confer was made.”

Section 430.41 provides that an alleged failure to meet and confer in compliance with the statute is not a permissible basis for either sustaining or overruling a demurrer, however. Accordingly, the Court proceeds with its ruling, while admonishing Defendants’ counsel to comply with meet and confer requirements in future filings.

Legal Standard

“A demurrer tests the sufficiency of the complaint by raising questions of law.” (*Schmidt v. Foundation Health* (1995) 35 Cal.App.4th 1702, 1706.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The court considers all matters that may be judicially noticed. (*Ibid.*) A demurrer does not test the truth or accuracy of the facts alleged in the complaint; the court assumes the truth of all properly pleaded factual allegations. (*Los Altos Golf & Country Club v. County of Santa Clara* (2008) 165 Cal.App.4th 198, 203.)

The complaint must be “liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc. § 452.) “[I]f it appears that the plaintiff is entitled to any relief against the defendant, the complaint will be held good, even though the facts may not be clearly stated.” (*Community Cause v. Boatwright* (1981) 124 Cal.App.3d 888, 896.)

When facts alleged in a pleading contrast with facts in exhibits, the facts contained in the exhibits will be accepted as true and controlling and will be given precedence. (*Dodd v. Citizens Bank of Costa Mesa* (1990) 222 Cal.App.3d 1624, 1627.)

The courts...will not close their eyes to situations where a complaint contains allegations of fact inconsistent with attached documents, or allegations contrary to facts which are judicially noticed. Thus, a pleading valid on its face may nevertheless be subject to demurrer when matters judicially noticed by the court render the complaint meritless.

(*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.)

It is an abuse of discretion to deny leave to amend on demurrer if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Salazar v. Target Corp.* (2022) 83 Cal.App.5th 571, 576-577.) “Where the complaint is defective, ‘[in] the furtherance of justice great liberality should be exercised in permitting a plaintiff to amend his complaint...’” (*Scott v. Indian Wells* (1972) 6 Cal.3d 541, 549 (citations omitted).)

Analysis

Statute of Limitations

The statute of limitations arguments raised in this demurrer substantially overlap with those raised in the related demurrer filed by Defendant Elisabeth Masoudi. The Court applies the same accrual and discovery analysis here.

The statute of limitations usually commences when a cause of action accrues, and it is generally said that an action accrues on the date of injury. (*Bernson v. Browning-Ferris Industries* (1994) 7 Cal.4th 926, 931.) A cause of action accrues at the time when the cause of action is complete with all of its elements. (*Aryeh v. Canon Business Solutions, Inc.* (2013) 55 Cal.4th 1185, 1191-92.)

The “discovery rule” is an exception to the general rule of accrual, and it postpones accrual of a cause of action until the plaintiff discovers or has reason to discover the cause of action. (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 807.) “[W]hen the plaintiff has notice or information of circumstances to put a reasonable person *on inquiry*, or *has the opportunity to obtain knowledge* from sources open to his investigation . . . the statute commences to run.” (*Sanchez v. South Hoover Hospital* (1976) 18 Cal.3d 93, 101 (citations omitted) (emphasis in original).)

A plaintiff need not be aware of the specific “facts” necessary to establish the claim; that is a process contemplated by pretrial discovery. Once the plaintiff has a suspicion of wrongdoing, and therefore an incentive to sue, she must decide whether to file suit or sit on her rights. So long as a suspicion exists, it is clear that the plaintiff must go find the facts; she cannot wait for the facts to find her.

(*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1111.)

The defendant’s fraud in concealing a plaintiff’s cause of action tolls the applicable statute of limitations for the period during which the claim is undiscovered by plaintiff or such time as plaintiff, by exercise of reasonable diligence, should have discovered it. (*Sanchez, supra*, 18 Cal.3d at 99.) “[T]he culpable defendant should be estopped from profiting by his own wrong *to the extent* that it hindered an ‘otherwise diligent’ plaintiff in discovering his cause of action.” (*Id.* at 100.)

Here, Mr. Rodriguez’s causes of action for intentional and negligent interference are subject to a two-year statute of limitations. (Code Civ. Proc. § 339(1).) His claim for conversion is subject to a three-year statute of limitations period. (*Id.*, Code Civ. Proc. § 338(c).) Civil conspiracy, constructive trust, and declaratory relief are derivative and governed by the statute applicable to the underlying substantive claims. To the extent Mr. Rodriguez seeks enforcement of rights arising from a written fee agreement, such claims are subject to a four-year limitations period. (*Id.*, Code Civ. Proc. § 337.)

Defendants contend that Mr. Rodriguez’s claims are time-barred on their face because “Plaintiff had actual knowledge that he had not been paid and that he purportedly had an unpaid lien” by 2019 at the latest. (Memorandum of Points and Authorities in Support of Demurrer (“MPA ISO Demurrer”) at

3:17.)

Mr. Rodriguez does not reconcile his prior verified allegation that his lien had been “completely disregarded” with his present assertion that he first discovered actionable wrongdoing in July 2024. (Def. RJN Ex.1 3:16-17, FAC ¶ 13.) He instead argues that the complaint in his 2019 suit is not judicially noticeable and that accrual turns solely on later discovery of settlement proceeds.

As discussed *supra*, the Court may take judicial notice of the existence and contents of the 2019 complaint. Mr. Rodriguez’s previous verified allegations demonstrate that by July 2019, at the latest, he believed that his asserted lien rights had not been honored and that he had suffered injury. These allegations demonstrate that by July of 2019, he had more than suspicion of wrongdoing, he had incentive to sue, and in fact he did sue. (*Jolly, supra*, 44 Cal.3d at 1111.)

Mr. Rodriguez’s allegation in the instant suit that he first learned in July of 2024 that Ms. Masoudi used dissolution proceeds to purchase real property does not alter this conclusion. The relevant inquiry for accrual is when Mr. Rodriguez discovered or had reason to discover that his alleged lien had been disregarded, not when he later learned how settlement or community property funds were used. A plaintiff is charged with knowledge once he has reason to suspect a factual basis for wrongdoing. (*Fox, supra*, 35 Cal.4th at 807.)

As currently pleaded, Mr. Rodriguez’s First Amended Complaint demonstrates that he believed his asserted lien rights had been disregarded no later than July 2019. The instant suit, filed in May 2025, therefore appears untimely under any potentially applicable statute of limitations.

Because the Court concludes that Mr. Rodriguez’s claims are time-barred as presently alleged, the Court need not reach the separate grounds that Defendants raise with respect to these causes of action. However, in an abundance of caution, Mr. Rodriguez is granted another opportunity to amend his complaint to allege, if he can do so in good faith, specific facts demonstrating that his claims are timely under the discovery rule.

Any amended pleading must clearly identify the factual basis for delayed discovery and explain why Plaintiff’s prior verified allegations do not establish accrual in 2019. The Court cautions Mr. Rodriguez that where a complaint contains allegations inconsistent with attached documents or documents judicially noticed, the exhibits and judicially noticed documents will be accepted as true and controlling and will be given precedence. (*Dodd, supra*, 222 Cal.App.3d at 1627; *Del E. Webb Corp., supra*, 123 Cal.App.3d at 604.)

Conclusion

For the foregoing reasons, Defendants’ demurrer is **SUSTAINED in its entirety WITH LEAVE TO AMEND.**